

Notwithstanding the Court's willingness to consider the demurrer, the good faith meet and confer requirement outlined in Code of Civil Procedure section 430.41 has not been met.

With the moving papers, a demurring party must file and serve a declaration stating either:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

(Code Civ. Proc., § 430.41 (a)(3).)

Defendant here filed a Declaration of Terance Orme, which attaches communications with plaintiff's counsel. From the communications, it appears that plaintiff's counsel did respond to Orme's meet and confer request. Specifically, counsel stated that she expected to be ready to meet and confer on "Tuesday," and asked if that worked for Orme. Orme then apparently did not follow up. Parties thus did not meet and confer. Nor did the party who filed the pleading fail to respond to the meet and confer request. Accordingly, defendants' declaration concerning such meet and confer is deficient and defendants have not complied with the statutory requirements.

While "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer" (Code Civ. Proc., § 430.41 (a)(4)), the Court elects to continue the hearing to allow parties to carry out their obligations in this respect.

The demurrer hearing is continued to April 9, 2026 in this Department at 9:00 a.m. By March 26, 2026, parties shall meet and confer by one of the methods set forth in the above statute. By April 2, 2026, defendants shall file a declaration outlining any such efforts, as well as describing agreements reached, if any.

9. 9:00 AM CASE NUMBER: C25-02081

CASE NAME: JILL REBIEJO VS. FAYE ABBES

***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION AND APPOINTMENT OF RECEIVER**

FILED BY: ABBES, FAYE KRISTAN

TENTATIVE RULING:

Before the Court is Defendant and Cross-Complainants Faye Abbes, Ronald Abbes, and Kevin Lettire (collectively, "Defendants" or "Cross-Complainants")'s motion for preliminary injunction and appointment of receiver (the "Motion"). The Motion is opposed by Plaintiff and Cross-Defendant Jill Rebiejo ("Cross-Defendant" or "Rebiejo").

For the following reasons, the Motion is **denied**.

Brief Factual and Procedural Background

This is a business dispute related to the ownership and operation of the restaurant Pete's Brass Rail & Car Wash. Plaintiff has a 50% ownership interest in Pete's 3 G LLC along with Defendant Faye Abbes. The LLC owns Pete's Brass Rail & Car Wash. Plaintiff manages both the LLC and the Restaurant.

The parties dispute whether a Board of Directors was later formed and whether Faye was later added as a second manager of the LLC. Cross-Complainant Faye Abbes testifies that “In or about April of 2023, with the SBA loan no longer a consideration, we decided to revise Exhibit B to the Operating Agreement ... to show both myself and Jill as ‘Manager(s) of the company.’” (Abbes Decl. at ¶ 7.) She also testifies that “we agreed to establish a Board of Directors to manage operation of the LLC and Restaurant, along with executive officers to execute the Board’s decisions.” (*Id.* at ¶ 8.)

Plaintiff and Cross-Defendant Rebiejo, however, testifies that “Pete’s has no board members” and “its Operating Agreement does not allow for the appointment of board members.” (Rebiejo Decl. at ¶ 7.) She further testifies that “[t]here was no meeting held where Faye and I were present to discuss or approve this, and I never signed anything to create a ‘Board of Directors’ or appoint Faye as a Manager of Pete’s.” (*Id.* at ¶ 8.)

On July 21, 2025, Rebiejo filed a derivative complaint for (1) breach of fiduciary duty (derivative); (2) declaratory relief (derivative); (3) conversion; (4) breach of fiduciary duty (individual); and (5) declaratory relief (individual). By her complaint, she alleges that Defendant Faye Abbes and her husband Ronald Abbes have “ ‘comped’ themselves and their friends at least \$30,000 in free meals and drinks,” have used company funds to pay their friend and their children for “supposed services provided to the company,” have billed personal expenses to the company, and “have been stealing Pete’s gift cards for themselves, and using those as personal gifts to friends and to benefit Ron’s business, all without company approval.” (Complaint at ¶¶ 13, 14.)

On October 13, 2025 Defendant Faye Abbes filed a Cross-Complaint for (1) breach of contract; (2) breach of fiduciary duty; (3) breach of implied covenant of good faith and fair dealing; (4) intentional misrepresentation; (5) fraudulent concealment; (6) negligent misrepresentation; (7) conversion; (8) accounting; and (9) access to corporate records. In her Cross-Complaint, Cross-Complainant Abbes contends that Plaintiff and Cross-Defendant Rebiejo has grossly mismanaged Pete’s leading to citations from the Health Department, a fine from the California Alcoholic Beverage Commission, as well as other alleged management transgressions. (Cross-Complaint at ¶¶ 18, 19.)

Defendants and Cross-Complainants filed the instant motion on January 16, 2026 and were assigned a hearing date of July 16, 2026. The Court granted an *ex parte* motion to advance the hearing date and set a compressed briefing schedule on February 5, 2026.

Analysis

Receiver

The principal source of authority to appoint a receiver is Code of Civil Procedure section 564. Defendant and Cross-Complainants’ application is based on both (b)(1) and (b)(9). Subsection (b) provides that “[a] receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: ... (1) In an action by a vendor to vacate a fraudulent purchase of property, or by a creditor to subject any property or fund to the creditor’s claim, or between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, or of any party whose right to or interest in the property or fund, or the proceeds of the property or fund, is probable, and where it is shown that the property or fund is in danger of being lost, removed, or materially injured. ... [and] (9) In all other cases where necessary to

preserve the property or rights of any party.”

Receivership is an equitable remedy. The appointment of a receiver rests in a large measure in the sound discretion of the court. “However, such power is not entirely uncontrolled and must be exercised with due regard to the facts presented in each particular case.” (*Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 873.)

Courts are generally reluctant to grant a receivership prior to trial, as a receivership is a harsh, time-consuming, and expensive remedy. The appointment of a receiver is a drastic remedy to be employed only in exceptional circumstances. (*City and County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, 744.) Courts usually prefer to regulate conduct of a business by injunctions, resorting to a receiver only when it is clear that an injunction will not work. “Ordinarily, if there is any other remedy, less severe in its results, which will adequately protect the rights of the parties, a court should not take property out of the hands of its owners. [Citations.]” (*Golden State Glass Corp. v. Superior Court of Los Angeles County* (1939) 13 Cal.2d 384, 393.)

The moving party has the burden of proving, by a preponderance of evidence, that appointment of a receiver is warranted. (*Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal. App. 2d 869, 874). The Court must consider the availability and efficacy of other remedies in determining whether to employ the extraordinary remedy of a receivership. (*Alhambra-etc. Mines v. Alhambra G. Mine* (1953) 116 Cal. App. 2d 869, 873.)

A party requesting the appointment of a receiver must include facts establishing one of the statutory grounds for such appointment. (*Miller v. Oliver* (1917) 174 Cal. 407, 410.) “In order for plaintiff to invoke the power of the court under subsection 1 it was necessary for it to show its joint interest with defendant in the property; that the same was in danger of being lost, removed or materially injured, and that plaintiff's right to possession was probable.” (*Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 873.) Plaintiff has the burden here by a preponderance of the evidence. (*Id.* at 874.) Finally, appointing a receiver is a drastic remedy, which will ordinarily not be used if any less severe remedy is available. (*Id.* at 873.)

Cross-Complainants argue that “given the persistent and intense conflicts between Faye and Jill in managing Pete’s, this case is perfectly suited for the appointment of a receiver.” (Motion at 14:23-24.) While it is clear from the parties’ declarations that there is an active dispute with respect to Restaurant management, Defendants and Cross-Complainants have not shown that “the property or fund is in danger of being lost, removed, or materially injured” under section 564(b)(1) or that a receiver is necessary to preserve the property or their rights under subsection (b)(2).

Here, Plaintiff Rebiejo has rebutted all of the factual allegations of Defendant Abbes’ declaration with her own declaration testimony and evidence. (Opposition at § II(E).) For example, with respect to the citation from the Alcoholic Beverage Commission for serving alcohol to a minor, Plaintiff testifies that she learned about the fine at a meeting and that she paid the reduced fine immediately. (Rebiejo Decl. at ¶ 16.) She further testifies that “[t]he Restaurant’s liquor license was never threatened or lost.” (*Id.*)

Defendants and Cross-Complainants have not made a sufficient showing that Pete’s 3 G LLC is in danger of losing money or being materially injured as a result of Plaintiff’s management of the

Restaurant. Although Defendants and Plaintiff clearly have conflicting management philosophies, that is not a sufficient basis to appoint a receiver. Defendants have not demonstrated by a preponderance of the evidence that Plaintiff has taken a course of action that places the LLC's solvency at risk.

The motion to appoint a receiver is **denied**.

Injunction

Defendants and Cross-Complainants seek a preliminary injunction "to enjoin plaintiff Jill Rebiejo from continuing to work at Pete's Brass Rail & Car Wash Restaurant and from paying herself for working at the Restaurant[.]" (Notice of Motion at ¶ 2:2-3.) Defendants also seek relief from Rebiejo that she "immediately provide defendants with full access to the Restaurant's management systems, including all necessary passwords or other information needed to access the systems, including but not limited to QuickBooks, ADP, SwipeClock and Hot Schedules" as well as relief that she "immediately turn over [to] the defendants her keys or access cards to the Restaurant and all over [sic] supplies and equipment necessary to operate the Restaurant." (Proposed Order Granting Motion for Preliminary Injunction at 2:27-3:3.)

Generally, the ruling on an application for preliminary injunction rests in the sound discretion of the trial court. (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450.) "An injunction properly issues only where the right to be protected is clear, injury is impending and so immediately likely as only to be avoided by issuance of the injunction. [Citation.]" (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) The purpose of the preliminary injunction, theoretically, is to preserve the status quo and prevent irreparable harm pending trial on the merits. (*White v. Davis* (2003) 30 Cal.4th 528, 554.)

In deciding whether to issue a preliminary injunction, a court must weigh two "interrelated" factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. (*Butt v. State of California* (1992) 4 Cal. 4th 668, 677-678.) The greater the showing on one factor, the less must be shown on the other to support an injunction. (*Butt v. State of California* (1992) 4 Cal.4th 668, 678; *Pleasant Hill Bayshore Disposal, Inc. v. Chip-It Recycling, Inc.* (2001) 91 Cal.App.4th 678, 696.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (*O'Connell v. Sup.Ct. (Valenzuela)* (2006) 141 Cal.App.4th 1452, 1481.)

The Court is not inclined to grant the requested injunction. Fundamentally, Defendants' requested orders would not "preserve" the status quo, but effectively grant judgment in Defendants' favor. This runs contrary to the underlying policy of preliminary injunctions, which preserve the status quo. The Court first notes the nature of the injunction requested. "[T]he general rule is that an injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act that changes the position of the parties." (*Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446.) The requested injunctive relief would effectively terminate Plaintiff. Thus, this is a mandatory injunction, as opposed to prohibitory, and it is subject to stricter standards. (See *Teachers Ins. & Annuity Assn. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493 [such an injunction is subject to stricter review on appeal].) Moreover, courts are generally more "reluctant" to issue a mandatory injunction, even if they may be granted in proper cases. (*Allen v.*

Stowell (1905) 145 Cal. 666, 669.)

1. Likelihood of Prevailing on the Merits

In looking at the likelihood of prevailing on the merits, the moving party bears the burden of establishing a reasonable probability of success on the merits. (*Association for Los Angeles Dept Sheriffs v. County of Los Angeles* (2008) 166 Cal.App.4th 1625, 1634.) Injunction will not issue if it appears the plaintiff will not prevail. (*SB Liberty, LLC v. Isla Verde Ass'n, Inc.* (2013) 217 Cal.App.4th 272, 280.)

Here, Cross-Complainants' motion is without reference to the operative Complaint or Cross-Complaint. Their argument is premised largely on their contention that a Board of Directors terminated Rebiejo's services as server and supervisor effective December 22, 2025. The legal effect of such a termination on Plaintiff's derivative and individual claims is unclear as Defendants' argument is largely conclusory. (See Motion at § III(C)(1).) Furthermore, Rebiejo vigorously disputes the existence and authority of a Board of Directors. (Rebiejo Decl. at ¶ 7 ["Pete's has no board members. It is a limited liability company governed by its manager, and its Operating Agreement does not allow for the appointment of board members."].) Defendants and Cross-Complainants have not demonstrated a likelihood of prevailing on the merits.

2. Balancing of the Relative Harms

In deciding whether to issue the injunction, the Court must also evaluate "the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued." (*Smith v. Adventist Health System/West* (2010) 182 Cal.App.4th 729, 749.) "The ultimate goal of any test to be used in deciding whether a preliminary injunction should issue is to minimize the harm which an erroneous interim decision may cause. [Citation.]" (*White v. Davis* (2003) 30 Cal.4th 528, 554.) Although the court has broad discretion, it has "no discretion to act capriciously." "It must exercise its discretion 'in favor of the party most likely to be injured.'" (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.)

"To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits." (*White v. Davis* (2003) 30 Cal.4th 528, 554.) Irreparable harm is often related to the 'inadequate legal remedy' (i.e., the damages remedy is inadequate because some immeasurable harm is threatened).

Here, Defendants argue that "[e]vidence of severe harm to Pete's is abundant." (Motion at 12: 27.) However, Plaintiff Rebiejo has rebutted all of the factual allegations of Defendant Abbes' declaration with her own declaration testimony and evidence. Defendants and Cross-Complainants have not adduced evidence of "an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award." (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410 (internal citation omitted).) On the other hand, Plaintiff has attested that the harm to her would be significant. (Rebiejo Decl. at ¶ 29 ["I am a single mother and my sole source of income is from wages earned working at the Restaurant, along with occasional distributions from the Company."].)

Finally, the Court notes that a preliminary mandatory injunction is rarely granted; it is permitted only in extreme cases where the right to such relief is clearly established. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 625.) Defendants have not met their burden to establish their right to relief. The Motion is **denied**.

Evidentiary Objections

Neither party made any evidentiary objections.

10. 9:00 AM CASE NUMBER: C25-02202
CASE NAME: ABIGAIL REED VS. ATRIA MANAGEMENT COMPANY LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ATRIA MANAGEMENT COMPANY LLC
TENTATIVE RULING:

Defendants filed this motion for an order compelling arbitration of plaintiffs' claims. Because the Court finds that a party to the arbitration agreement is also a party to a pending court action with a third party, arising out of the same transaction or series of related transactions, and there is a possibility of conflicting rulings on a common issue of law or fact, the motion to compel arbitration is **denied** pursuant to Code of Civil Procedure, § 1281.2 (c)-(d).

Background

Plaintiffs, Abigail Reed and Emma Reed, are the adult children and heirs of decedent, Kenneth Reed. They are also the Personal Representatives, and Executors of his estate. Prior to his death, Kenneth was a 76-year old resident of Atria Park of Lafayette, a residential care facility for the elderly, for just under three months. (FAC, ¶¶18-19.) Kenneth suffered from Parkinson's Disease, congestive heart failure, and other conditions causing him to be bed ridden and require significant assistance in daily activities. (FAC, ¶¶20-21.) Kenneth's wife, Susan (for clarity, the parties will be referred to by their first names. No disrespect is intended), signed admission documents on his behalf with respect to Kenneth's admission to the facility, including an arbitration agreement.

According to plaintiffs, Kenneth was admitted despite him being unable to perform all his activities of daily living without assistance, a "prohibited condition," which made him unqualified to stay and receive care at Atria Park. Plaintiffs allege Kenneth then suffered four falls between October 26th and November 18th. He was hospitalized after the November 18th fall and died on January 4, 2025.

Plaintiffs filed this action in August 2025 and, on September 18, 2025, they filed a First Amended Complaint, alleging causes of action for (1) elder abuse, (2) negligence, and (3) wrongful death.

Defendants now move to compel arbitration, arguing the agreement to arbitrate should be enforced because it is valid and enforceable, because it is not unconscionable, and because any enforceability issues must be determined by the arbitrator pursuant to the delegation clause. Defendants argue the FAA governs pursuant to the express terms of the agreement and, therefore, Code of Civil Procedure section 1281.2, subdivision (c) is preempted and the "only option" available is to compel arbitration.

The motion is supported by a declaration of the Community Business Director of Atria Park,